

Bhoop Singh v. State of U.P.

Allahabad High Court · Division Bench · 9 February 2016 · Writ-C No. 5547 of 2016 · **Writ dismissed with liberty to avail Clause 6.5(b) remedy.**

HEADNOTE

A consumer who disputes an electricity bill as excessive, including charges for a disconnected period, must first invoke Clause 6.5(b) of the Uttar Pradesh Electricity Supply Code, 2005. The High Court will not examine the correctness of the bill in the first instance. Writ petition dismissed with liberty to avail that statutory remedy.

FACTUAL SUMMARY

The petitioner, Bhoop Singh, claimed he had been given an electricity connection under the Union Government's Kutir Jyoti Programme meant for persons below the poverty line. He approached the Allahabad High Court against a bill raised by the Executive Engineer of Madhyanchal Vidyut Vitran Nigam Limited at Budaun, alleging that the demand was highly excessive and included charges even for the period of disconnection. In substance he disputed the entire bill.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)

excessive-billing

HOLDING

Where a consumer disputes an electricity bill as highly excessive, including for a period of disconnection, Clause 6.5(b) of the Uttar Pradesh Electricity Supply Code, 2005 is the statutory alternative remedy. The High Court will not examine the correctness of the bill in the first instance and will dismiss the writ with liberty to avail that remedy. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE IMPUGNED BILL, INCLUDING CHARGES FOR THE DISCONNECTED PERIOD

Left to the Clause 6.5(b) forum ¶ 1